

		In addition, a party moving to compel production must also submit a separate statement pursuant to Cal. Rules of Ct., Rule 3.1345(c). Plaintiff here failed to file the requisite separate statement. Nor did she include the subject discovery requests and responses with her motion. Plaintiff also fails to establish good cause for compelling further responses. Plaintiff does not explain how the requested documents are relevant and/or why they are necessary for trial preparation. (See Code Civ. Proc., § 2031.310(b)(1).) Accordingly, the motion is DENIED. The clerk will give notice.
57	<i>Limtiaco vs. Pirates Dinner Adventure</i>	The motion of defendant Norwood Stores, Inc. dba California Dinner and Entertainment, LLC dba Pirate’s Dinner Adventure for an order requiring plaintiff Anita Limtiaco to post a bond of \$75,000 is DENIED. This is an action for negligence/premises liability. Plaintiff fell and was injured at Defendant’s establishment while attending a Pirate’s Dinner Adventure. More specifically, Plaintiff alleges “she tripped on an unmarked, uneven, defective, cracked, broken and/or deteriorated step causing her to trip and fall,” [Complaint (ROA #2), ¶ GN-1.] Defendant has presented Plaintiff’s interrogatory responses, which say essentially the same thing, and her deposition testimony in which she describes standing up from her chair, while watching the show, to allow her son-in-law to pass behind her, and not seeing or realizing how close to the edge of the platform she was, which resulted in her taking a step onto nothing and falling. [Sherman Decl. (ROA #62), Exs. B and C.] “There

was not enough stairs or the -- the path -- the thing, where you stand.” *Id.*, Ex. C.]

Defendant also presented photographs produced by Plaintiff, which, Defendant contends, show no defect in the stair step. [Sherman Decl., Ex. E.] Finally, Defendant presents the declaration of its HR Director stating the stairs are lit with industry standard lighting and have metal strips to reflect that light. [Kyckelhahn Decl. (ROA #62), ¶¶ 5-6.] After Plaintiff’s fall, Defendant inspected the stair step and found it to be in perfect condition. [*Id.*, ¶ 8.]

In support of its request for a bond of \$75,000, Defendant’s counsel declares that Defendant has incurred “approximately \$35,000.00 in defense costs and fees, which are anticipated to increase by an additional \$40,000 or more through trial.” [Sherman Decl., ¶ 8.]

Though she resided in California at the time of her fall, Plaintiff no longer lives in California. [Limtiaco Decl. (ROA #69), ¶¶ 5, 7.] Though Plaintiff has not applied for a waiver of costs for indigency, she describes very limited financial resources and reduced living conditions. [*Id.*, ¶¶ 7-9.] She declares she cannot afford to post a bond of \$75,000 and if ordered to do so would have to dismiss her action. [*Id.*, ¶¶ 10-12.]

“When the plaintiff in an action or special proceeding resides out of the state, or is a foreign corporation, the defendant may at any time apply to the court by noticed motion for an order requiring the plaintiff to file an undertaking to secure an award of costs and attorney’s fees which may be awarded in the action or special proceeding. For the purposes of this section, ‘attorney’s fees’ means reasonable attorney’s fees a party may be authorized to recover by a statute apart from this

section or by contract.” Code Civ. Proc. § 1030(a)(bold added).

For purposes of a bond motion, residency is determined at the time of the motion. *See Myers v. Carter* (1960) 178 Cal.App.2d 622, 626-627 (finding plaintiff’s undisputed subsequent return to California, as found upon motion to reconsider order requiring bond, governed result).

The motion must be supported by points and authorities and affidavits showing: (1) plaintiff’s nonresidency; (2) a “reasonable possibility” defendant will prevail in the action; and (3) the nature and amount of costs and fees defendant is likely to incur in the action. Code Civ. Proc. § 1030(b).

To obtain an order requiring such bond, defendant must show a “reasonable possibility” that it will prevail at trial, and a declaration setting forth “the **nature and amount of the costs** and attorney’s fees the defendant has incurred and expects to incur by the conclusion of the action or special proceeding.” Code Civ. Proc. § 1030(a), (b) (bold added); *Baltayan v. Estate of Getemyan* (2001) 90 Cal.App.4th 1427, 1433 (fact that defendant prevailed in judicial arbitration established “reasonable possibility” it would prevail at trial). “If the court, after hearing, determines that the grounds for the motion have been established, the court shall order that the plaintiff file the undertaking in an amount specified in the court’s order as security for costs and attorney’s fees.” Code Civ. Proc., § 1030(c).

“The plaintiff shall file the undertaking not later than 30 days after service of the court’s order requiring it or within a greater time allowed by the court. If the plaintiff fails to file the undertaking within the time allowed, the plaintiff’s action or special proceeding shall be dismissed as to the

	defendant in whose favor the order requiring the undertaking was made.” Code Civ. Proc., § 1030(d). The purpose of section 1030 “is to enable a California resident sued by an out-of-state resident ‘ “to secure costs in light of the difficulty of enforcing a judgment for costs against a person who is not within the court's jurisdiction.” ’ [Citation.] The statute therefore acts to prevent out-of-state residents from filing frivolous lawsuits against California residents.” <i>Yao v. Superior Court</i> (2002) 104 Cal.App.4th 327, 331. The court has discretion to waive the posting of an undertaking to indigent persons (<i>Baltayan v. Estate of Getemyan</i> (2001) 90 Cal. App. 4th 1427, 1434) and to reduce the security bond for middle income litigants. <i>Alshafie v. Lallande</i> (2009) 171 Cal.App.4th 421, 435-436. This is, in fact, a question of due process and fundamental fairness. A defendant’s economic interest cannot be used to deny a litigant his “fundamental right of access to the courts.” <i>Alshafie v. Lallande</i>, 171 Cal.App.4th at 429 (citation and internal quote marks omitted). Residency: There is no dispute that Plaintiff now resides outside California. Reasonable Possibility of Prevailing: To meet its burden, Defendant is “not required to show that there was no possibility that [Plaintiff] could win at trial, but only that it was <i>reasonably possible</i> that [Defendant] would win.” <i>Baltayan, supra</i>, 90 Cal.App.4th at 1432, citing § 1030, subd. (b). Defendant points to its own evidence that there was no defect or damage to the stair step and what it describes as Plaintiff’s changing story, from her complaint and interrogatory response to her deposition, about how she came to fall. On the record presented, the jury’s weighing of Plaintiff’s
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